OFFICE OF THE GOVERNOR OF THE STATE OF ARDEN

26 August 2025

The Honourable the Attorney General

State House, Ardenport

Madam Attorney General,

The Climate Resilience Funding Act was presented to me this morning. Under Article IV of the Constitution I have ten days in which to sign or return it. I am asked by several quarters to sign it at once and by others to return it. I am not prepared to do either until this office has your view on whether the bill will survive challenge.

I should be grateful for a memorandum addressing, in respect of each provision that in your judgement carries risk, what the risk is, how large it is, and what amendment would remove it. Where the answer turns on figures, I should like to see the figures and how they were arrived at. I do not want a survey of the case law; I want to know which parts of this bill will not hold and what to do about them.

The Department of Revenue, the Energy Office, the Environmental Quality Board and the Legislative Fiscal Office have each been directed to give your office whatever material you ask for. The companies that would be affected have supplied revenue disclosures at your request; I am told those are now with you.

Please treat this as the first matter before your office. The signature deadline is 5 September.

Yours faithfully,

Governor of the State of Arden